

made an offer of employment, the offer letter reiterated that the DRP would be a term and condition of employment and her exclusive remedy for any employment claims she might have. She subsequently accepted and began her employment with the company.

12. 9:00 AM CASE NUMBER: MSC19-02639
CASE NAME: VEGA VS GAGNI
***HEARING ON MOTION IN RE: RELIEF FROM STAY AND GFS BTWN BAES AND VEGA**
FILED BY: BAY AREA ESCROW SERVICES
TENTATIVE RULING:

Granted – Based on Non-opposition of Defendant Bay Area Escrow Services.

13. 9:00 AM CASE NUMBER: MSC20-02420
CASE NAME: ROBINSON VS ANTIOCH UNIFIED SCHOOL
***HEARING ON MOTION IN RE: BIFURCATE TRIAL**
FILED BY: ANTIOCH UNIFIED SCHOOL DISTRICT
***TENTATIVE RULING:**

Appearance required by Attorneys who will actually “try” the case.

Appearances may be at 10:00 AM at the time set for the issue Conference.

14. 9:00 AM CASE NUMBER: MSC21-00470
CASE NAME: DOTSON VS CINEMARK USA INC.
***HEARING ON MOTION IN RE: QUASH SUPPLEMENTAL EXPERT DISCLOSURES AND ISSUE**
PROTECTIVE ORDER
FILED BY: CENTURY THEATERS, INC.
TENTATIVE RULING:

The Court has received an ex parte request which is unopposed to continue the trial based on unavailability of counsel. The Motion to Continue is granted and the matter is set for trial setting conference on July 27, 2026, 8:30AM, D.32.

The Motion to Quash is, therefore, not ruled on and the parties are ordered to meet and confer and resolve the “expert witness” issues in light of the continuance.

ADD-ON Law & Motion

9:00 AM

CASE NUMBER: MSC21-01540

CASE NAME: BOWLES & Verna VS PHAM, ET AL.

HEARING ON SUMMARY MOTION CONT'D PER T/R OF 4/3/26

FILED BY:

TENTATIVE RULING:

Defendant Le Thi Hong Phams' motion for **summary judgment is denied**. Her motion for **summary adjudication is denied as to cause of action three and otherwise granted**.

In the FAC, Plaintiff Bowles & Verna LLP sued Le Thi Hong Pham (Le Pham) for breach of contract, unjust enrichment, account stated, quantum meruit and breach of contract. Plaintiff alleges that they did legal work for Pham's brothers: Nhan Van Pham and "Ricky" Hai Thanh Pham and are owed \$143,600.79. Plaintiff also alleges that Defendant Le Pham breached her agreement to pay for the legal work. (FAC ¶¶24, 25.) Plaintiff was unaware of the Le Pham's agreement with her brothers until after this case was filed. (Bowles dec. ¶10.)

Plaintiff is also suing Defendants Nhan Van Pham and Tuyet Le for \$110,800.35 in unpaid legal work, but it is not seeking recovery of those fees from Le Pham. (FAC prayer for relief.)

Breach of contract (causes of action two and six)

The second and sixth causes of action for breach of contract against Le Pham are based on a third-party beneficiary theory.

"In California, as in other jurisdictions, it is well established that under some circumstances a third party may bring an action for breach of contract based upon an alleged breach of a contract entered into by other parties. Civil Code section 1559, enacted as one of the provisions of the original 1872 Civil Code, declares: 'A contract, made expressly for the benefit of a third person, may be enforced by him at any time before the parties thereto rescind it.'" (*Goonewardene v. ADP, LLC* (2019) 6 Cal.5th 817, 826-827.)

Civil Code section 1559 provides that a contract "made expressly for the benefit of a third person, may be enforced by him at any time before the parties thereto rescind it." "[T]he third person need not be named or identified individually to be an express beneficiary." [Citations.]" (*Spinks v. Equity Residential Briarwood Apartments* (2009) 171 Cal.App.4th 1004, 1023.)

A third-party beneficiary must show: "(1) whether the third party would in fact benefit from the contract, but also (2) whether a motivating purpose of the contracting parties was to provide a benefit to the third party, and (3) whether permitting a third party to bring its own breach of contract action against a contracting party is consistent with the objectives of the contract and the reasonable expectations of the contracting parties. All three elements must be satisfied to permit the third party action to go forward." (*Goonewardene, supra*, 6 Cal.5th at 830.) As to the second element, "the contracting parties must have a motivating purpose to benefit the third party, and not simply

knowledge that a benefit to the third party may follow from the contract.” (*Ibid.*)

In *Goonewardene*, an employee filed an action against her former employer for failure to pay wages due and for wrongful termination. She also sued her employer's payroll services provider for breach of contract by failing to provide her with adequate documentation and records regarding her compensation. The California Supreme Court held that the employee was not a third-party beneficiary of the contract between the employer and the payroll services company. It explained that the motivating purpose of a payroll services agreement is to assist the employer in performing its required tasks, and not to benefit its employees with regard to paying their wages. (*Id.* at 835.)

Here, Plaintiff alleges that the brothers (Nhan Van Pham and Ricky Hai Pham) entered into a contract with Le Pham where she agreed to pay for Bowles & Verna’s legal services. (FAC ex. C.) It is undisputed that the brothers and Le Pham entered into the agreement (the “ELOC”).

The agreement is an Equity Line of Credit for \$200,000. “This line of credit is obtained to finance the litigation involving the ownership of the Gas station [Grand-Mandana]... . Le Thi Hong Pham promises to advance the legal fees until the case is finally settled.” (ELOC ¶1.) Once the case is settled, the gas station would be sold and Le Pham would receive 40% of the proceeds of the sale of the gas station. (ELOC ¶12, 4.) The parties agreed to “honor this agreement and will not litigate against each other.” (ELOC ¶18.) The agreement was dated April 16, 2019. (ELOC.)

Both sides argue over the interpretation of the ELOC. “Contract interpretation is a question of law. ... ‘The fundamental goal of contractual interpretation is to give effect to the mutual intention of the parties.’ [Citation.] When language in a contract is clear and explicit, that language governs interpretation. [Citation.] ‘When an instrument is susceptible to two interpretations, the court should give the construction that will make the instrument lawful, operative, definite, reasonable and capable of being carried into effect and avoid an interpretation which will make the instrument extraordinary, harsh, unjust, inequitable or which would result in absurdity.’ [Citation.]” (*Canyon Vineyard Estates I, LLC v. DeJoria* (2022) 78 Cal.App.5th 995, 1003.)

Defendant argues that the ELOC’s motivating purpose did not include benefiting Bowles & Verna. Defendant also argues that the language in the ELOC that states the parties will not litigate against each other and thus, Plaintiff does not have the right to sue under the ELOC. Defendant has met her initial burden of showing that the ELOC’s motivating factors did not include benefiting Bowles & Verna.

In opposition, Plaintiff argues that a motivating factor of the ELOC was ensuring the attorney bills would be paid so that the parties could realize the objectives of the litigation. Plaintiff’s argument is not persuasive. While Bowles & Verna may have benefited from the ELOC such benefit was incidental to the agreement. The ELOC does not show that one of its motivating purposes was to benefit Bowles & Verna.

Therefore, the Court finds that Bowles & Verna is not a third-party beneficiary of the ELOC

and as such, the breach of contract claims against Le Pham fail.

Defendant also argues that if Plaintiff is allowed to proceed as a third party beneficiary under the contract, the claim fails because the ELOC was rescinded. The Court has provided the analysis below in the event it changes its ruling on the third-party beneficiary analysis.

Le Pham loaned her brothers more than \$150,000 between May 2019 and October 2020. (Le Pham dec. ¶15.) Le Pham declares that on August 16, 2020, the court ruled that the brothers had previously sold their interest in the gas station business and once she realized this she “immediately informed them [she] was not going to loan them any more funds and demanded repayment of the funds [she] had previously loaned Nhan.” (Le Pham dec. ¶¶17, 18, 19.) Le Pham states that within a week, Nhan and his wife Tuyet repaid \$48,260 on October 16, 2020. (Le Pham dec. ¶20.)

Le Pham has not met her burden of showing that when she rescinded the contract nothing was owed to Bowles & Verna. Assuming that the date of rescission cuts off a claim for attorney fees incurred after that date, Le Pham has not shown what work occurred up to the date of rescission and what fees, if any, were left unpaid at that time. As the moving party on this motion, Le Pham has the initial burden of showing that nothing was owed at the time of rescission. Otherwise, if anything was owed to Bowles & Verna at the time of rescission, they could bring a claim for those fees (assuming that Plaintiff prevails on its third-party beneficiary theory).

Having found that benefiting Bowles & Verna was not a motivating factor of the ELOC, the Court grants summary adjudication as to causes of action two and six.

Unjust Enrichment (cause of action three)

Defendant argues that unjust enrichment is not a cause of action in California. Plaintiff disagrees.

Court of Appeals have disagreed on whether unjust enrichment is a cause of action or just a remedy. The First District has taken both positions. (*McBride v. Boughton* (2004) 123 Cal.App.4th 379, 387 [unjust enrichment is not a cause of action]; *Elder v. Pacific Bell Telephone Co.* (2012) 205 Cal. App. 4th 841, 857 [unjust enrichment is a cause of action].)

The Second District has also taken both positions. Several cases have found that unjust enrichment is not a cause of action. (*Melchior v. New Line Prods., Inc.* (2003) 106 Cal.App.4th 779, 793; *De Havilland v. FX Networks, LLC* (2018) 21 Cal.App.5th 845, 870; *Bank of New York Mellon v. Citibank, N.A.* (2017) 8 Cal.App.5th 935, 955;.) While other cases have stated that unjust enrichment is a cause of action. (*Professional Tax Appeal v. Kennedy-Wilson Holdings, Inc.* (2018) 29 Cal.App.5th 230, 238; *Prakashpalan v. Engstrom, Lipscomb & Lack* (2014) 223 Cal.App.4th 1105, 1132; *Lectrodryer v. SeoulBank* (2000) 77 Cal.App.4th 723, 726.)

The Fourth District has found that unjust enrichment is a cause of action. (*Peterson v. Cellco* (2008) 164 Cal.App.4th 1583, 1593; *Durell v. Sharp Healthcare* (2010) 183 Cal.App.4th 1350, 1370.)

As one court explained, “[t]here is no cause of action in California labeled ‘unjust enrichment.’ [Citations.] But ‘[c]ommon law principles of restitution require a party to return a benefit when the retention of such benefit would unjustly enrich the recipient; a typical cause of action involving such remedy is “quasi-contract.”’ [Citations.]” (*City of Oakland v. Oakland Raiders* (2022) 83 Cal.App.5th 458, 477.) “ ‘Whether termed unjust enrichment, quasi-contract, or quantum meruit, the equitable remedy of restitution when unjust enrichment has occurred ‘is an *obligation* (not a true contract [citation]) created by the law without regard to the intention of the parties’” [Citations.]” (*City of Oakland, supra*, 83 Cal.App.5th at 477-478.)

Several of the cases that found there was a cause of action for unjust enrichment relied on *Ghirardo v. Antonioli* (1996) 14 Cal.4th 39. There, the defendant argued the plaintiff was “not entitled to relief because he did not plead a cause of action for unjust enrichment in his complaint.” The California Supreme Court rejected this argument, finding that “[t]he complaint set forth a common count ‘for payment of money’ that rests on a theory of unjust enrichment. The claim was adequately pleaded and proved.” (*Id.* at 54.)

Although case law is far from clear, the Court finds that unjust enrichment is a legally valid cause of action.

Defendant also argues that to the extent unjust enrichment is a valid cause of action, it fails here because Pham did not receive any benefit and unjust enrichment requires a wrongfully retained benefit. (*First Nationwide Savings v. Perry* (1992) 11 Cal.App.4th 1657, 1662.)

In the quantum meruit cause of action, Defendant argues that she received no benefit from Bowles & Verna’s work on her brothers’ case. In opposition, however, Plaintiff argues that Defendant had an interest in the outcome of the case and thus, benefited from Plaintiff’s work on the case. While the case was not ultimately successful, the brothers benefited from the work by their attorneys at Bowles & Verna. Since the ELOC stated that Le Pham had a 40% interest in the sale of the gas station should the brothers’ litigation prevail, there is a triable issue as to whether she wrongfully retained benefit from the work by Bowles & Verna.

The motion for summary adjudication as to the third cause of action is denied.

Account Stated (cause of action four)

“The essential elements of an account stated are: (1) previous transactions between the parties establishing the relationship of debtor and creditor; (2) an agreement between the parties, express or implied, on the amount due from the debtor to the creditor; (3) a promise by the debtor, express or implied, to pay the amount due. [Citations.]” (*Zinn v. Fred R. Bright Co.* (1969) 271 Cal.App.2d 597, 600.) “In the usual situation, it comes about by the creditor rendering a statement of the account to the debtor. If the debtor fails to object to the statement within a reasonable time, the law implies his agreement that the account is correct as rendered. [Citations.]” (*Ibid*; *Maggio, Inc. v. Neal* (1987) 196 Cal.App.3d 745, 753.)

Le Pham argues that the complaint does not allege that Plaintiff ever sent invoices or other bills to Le and The FAC includes invoices for work done by Plaintiff, which were sent to Nhan Van Pham, Tuyet Le and Ricky Pham. (FAC ex. B.) None of these invoices show that they were sent to Le Pham. Further, Le Pham declares that Plaintiff did not communicate with her about these legal fees prior to initiating this lawsuit. (Le Pham dec. ¶28.)

In opposition, Plaintiff objects to the facts as immaterial or irrelevant, but does not provide evidence showing that they sent invoices to Le Pham.

The Court finds that Defendant has met her burden of showing that the account stated claim fails because she says she had no communications with Plaintiff regarding these fees. Further, Plaintiff has not provided evidence to the contrary. The motion for summary judgment as to the fourth cause of action is granted.

Quantum Meruit (cause of action five)

“ ‘To recover in quantum meruit, a party need not prove the existence of a contract [citations], but it must show the circumstances were such that ‘the services were rendered under some understanding or expectation of both parties that compensation therefor was to be made.’” [Citation.]” (*County of Santa Clara v. Superior Court* (2023) 14 Cal.5th 1034, 1049-1050.)

“The underlying idea behind quantum meruit is the law's distaste for unjust enrichment. If one has received a benefit which one may not justly retain, one should ‘restore the aggrieved party to his [or her] former position by return of the *thing* or its *equivalent* in money.’ (1 Witkin, Summary of Cal. Law [(9th ed. 1987)] Contracts, § 91, p. 122.) [¶] The idea that one must be *benefited* by the goods and services bestowed is thus integral to recovery in quantum meruit; hence courts have always required that the plaintiff have bestowed some benefit on the defendant as a prerequisite to recovery. [Citation.]” (*Maglica v. Maglica* (1998) 66 Cal.App.4th 442, 449-450.)

“[I]n order to recover under a quantum meruit theory, a plaintiff must establish *both* that he or she was acting pursuant to either an *express or implied request* for such services from the defendant *and* that the services rendered were *intended to and did benefit* the defendant. One court summarized the rule as follows: ‘The theory of quasi-contractual recovery is that one party has accepted and retained a benefit with full appreciation of the facts, under circumstances making it inequitable for him to retain the benefit without payment of its reasonable value.’ [Citation.]” (*Day v. Alta Bates Medical Ctr.* (2002) 98 Cal.App.4th 243, 248.)

“To recover on a claim for the reasonable value of services under a quantum meruit theory, a plaintiff must establish both that he or she was acting pursuant to either an express or implied request for services from the defendant and that the services rendered were intended to and did benefit the defendant.” (*Ochs v. PacifiCare of California* (2004) 115 Cal.App.4th 782, 794, internal citation omitted.)

Here, Le Pham declares that she was not a party to the Grand-Mandana lawsuit and did not

receive any benefit from that lawsuit. (Le Pham dec. ¶¶24 and 27.) She also declares that she never made any representations to Bowles & Verna that she was a guarantor of the payment of legal bills and never paid Bowles & Verna any money related to the Grand-Mandana lawsuit. (Le Pham dec. ¶¶25 and 26.)

The Court finds that Le Pham has met her burden of showing that she did not promise to pay for the brother's legal fees and was not a party to the Grand-Mandana lawsuit. Thus, these facts show that Bowles & Verna did work to benefit the brothers, not Le Pham. Defendant has met her initial burden.

In opposition, Richard Bowles declares that Le Pham reached out to him and asked if Bowles & Verna could represent her brothers in the Grand-Mandana lawsuit. (Bowles dec. ¶4.) Le Pham accompanied her brothers at the initial meeting and would attend other meetings between Bowles and the brothers about Grand-Mandana lawsuit. (Bowles dec. ¶¶5, 7.) Bowles states that when first discussing the issue of payment, Le Pham assured him that the bills would be paid and funds available for Bowles & Verna's services, however, she did not disclose the Equity Line of Credit. (Bowles dec. ¶9.) Bowles did not learn of the ELOC until after this lawsuit was filed. (Bowles dec. ¶10.)

While there is a triable issue as to whether Le Pham told Bowles that she would pay her brother's attorney fees in the Grand-Mandana lawsuit, that triable issue is not material. Assuming that Le Pham orally agreed to pay her brothers' legal fees, there is no showing that the work Bowles & Verna did was intended to benefit Le Pham, as opposed to her brothers.

The evidence does not show that Le Pham and Bowles intended the work by Bowles & Verna to benefit Le Pham. It was only after Bowles & Verna stopped working on the case and sued the brothers that it first learned that Le Pham had an interest in the Grand-Mandana lawsuit. Thus, there is no evidence that that the services rendered were intended to benefit the defendant.

The Court finds that Plaintiff has not shown there is a triable issue of material fact as to the quantum meruit cause of action and the Court grants the motion for summary adjudication as to cause of action five.

Defendant's request for judicial notice of Business and Professions Code section 6148 is granted. Although, it is not usually necessary to request judicial notice of California Statutes.

Discovery Law & Motion

15. 9:01 AM CASE NUMBER: C24-03078

CASE NAME: THALBIR OLI VS. GOVIND SHAHI

*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO DEFENDANT GOVIND K. SHAHI'S FORM INTERROGATORIES, SET ONE

FILED BY: SHAHI, GOVIND K.

TENTATIVE RULING: